

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 94-357

WASTE DISCHARGE REQUIREMENTS
FOR
CALAVERAS COUNTY WATER DISTRICT
COUNTRY HOUSES HOMEOWNERS ASSOCIATION
HOOPA CIRCLE COMMUNITY LEACHFIELD
CALAVERAS COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

- 1.American Forest Properties, Inc., submitted a Report of Waste Discharge (RWD) and a site evaluation report, dated 18 December 1972, for their wastewater treatment and disposal facility. The property, Assessor's Parcel (APN) No. 23-079-01, is owned by the Country Houses Homeowners Association.
- 2.Waste Discharge Requirements Order No. 73-182, adopted by the Board on 23 March 1973, prescribes requirements for a discharge from septic tanks to land via subsurface leachlines. Order No. 73-182 is neither adequate nor consistent with current plans and policies of the Board.
- 3.The Calaveras County Water District adopted Resolution No. 1670, on 1 May 1974, which certified the purchase from American Forest Properties, Inc., of the sewage collection and treatment facilities located on APN 23-079-01.
- 4.Calaveras County Water District and Country Houses Homeowners Association are hereafter collectively referred to as Discharger.
- 5.The RWD included design criteria for the septic tank and leachfield trenches. The RWD states that the area set aside for disposal consists of approximately 1.75 acres allowing for a 100% expansion of the leachfield if necessary in the future. The design capacity is 7,000 gallons per day.
- 6.The septic tank and leachfields are in the NW3 of Section 7, T5N, R16E, MDB&M, with surface water drainage to the North Fork of the Stanislaus River, as shown in Attachment A, which is attached hereto and part of the Order by reference.
- 7.The Board adopted a Water Quality Control Plan, Second Edition, for the Sacramento-San Joaquin Delta Basin (hereafter Basin Plan), which contains water quality objectives for all waters of the Basin. These requirements implement the Basin Plan.

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8. The beneficial uses of the North Fork of the Stanislaus River are municipal, industrial, and agricultural supply; recreation; aesthetic enjoyment; hydropower generation; and preservation and enhancement of fish, wildlife, and other aquatic resources.
9. The beneficial uses of underlying ground water are domestic, industrial, and agricultural supply.
10. The Basin Plan encourages reclamation.
11. The action to update waste discharge requirements for this facility is exempt from the provisions of the California Environmental Quality Act (CEQA), in accordance with Title 14, California Code of Regulations (CCR), Section 15301.
12. This discharge is exempt from the requirements of Title 23, CCR, Section 2510, et seq. (hereafter Chapter 15). The exemption, pursuant to Section 2511(b), is based on the following:
 - a. The Board is issuing waste discharge requirements, and
 - b. The discharge complies with the Basin Plan, and
 - c. The wastewater does not need to be managed according to 22 CCR, Division 4, Chapter 30, as a hazardous waste.
13. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
14. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. 73-182 is rescinded and Calaveras County Water District, its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

B. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous' or 'designated', as defined in Sections 2521(a) and 2522(a) of Chapter 15, is prohibited.

C. Discharge Specifications:

- 1.The monthly average daily dry weather discharge flow shall not exceed 0.007 million gallons.
- 2.Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment and disposal areas (or property owned by the Discharger).
- 3.Effluent discharged to leachfields shall remain underground at all times.
- 4.Public contact with wastewater shall be precluded through such means as fences, signs, and other acceptable alternatives.

D. Sludge Disposal:

- 1.Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with Chapter 15, Division 3, Title 23, of the California Code of Regulations and approved by the Executive Officer.
- 2.Any proposed change in sludge use or disposal practice from a previously approved practice shall be reported to the Executive Officer and U.S. Environmental Protection Agency (EPA) Regional Administrator at least 90 days in advance of the change.
- 3.Use and Disposal of sewage shall comply with existing Federal and State laws and regulations, including permitting requirements and technical standards included in 40 CFR 503.

If the State Water Resources Control Board and the Regional Water Quality Control Boards are given the authority to implement regulations contained in 40 CFR 503, this Order may be reopened to incorporate appropriate time schedules and technical standards. The Discharger must comply with the standards and time schedules contained in 40 CFR 503 whether or not they have been incorporated into this Order.

E. Provisions:

- 1.The Discharger shall comply with the Monitoring and Reporting Program No. 94-357, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
- 2.The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements", dated 1 March 1991, which are attached hereto and by

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reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provisions."

3. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.
4. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
5. As Calaveras County Water District is a public agency, enforcement actions will be taken against it only after it is given the opportunity to use its governmental powers promptly to remedy the waste discharge.
6. A copy of this Order shall be kept at the discharge facility for reference by operating personnel. Key operating personnel shall be familiar with its contents.
7. The Board will review this Order periodically and will revise requirements when necessary.

I, WILLIAM H. CROOKS, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 9 December 1994.

EAH

WILLIAM H. CROOKS, Executive Officer